

2025-1363

**United States Court of Appeals
for the Federal Circuit**

CHRIS J. KROENUNG,

Petitioner

v.

DEPARTMENT OF DEFENSE,

Respondent

Petition for Review from the Merit Systems Protection Board
in CH-0752-23-0234-I-1

PETITIONER CHRIS KROENUNG'S MOTION FOR JUDICIAL NOTICE

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INTRODUCTION

Petitioner Kroenung (“Kroenung”) contemporaneously files an opening brief that identifies constitutional flaws with policies enforced by his employer, the National Geospatial-Intelligence Agency (“NGA” or “agency”), a component agency of the Department of Defense (“DOD”). Kroenung was removed for failing to follow an agency policy mandating he take weekly Covid tests (“agency policy”). The Board found the “policy was implemented in accordance with [DOD Guidance issued January 10, 2022 (“DHP”) (containing guidance at Tab 1 issued December 20, 2021)].” Appx2-3 (Decision); Appx101-140 (DHP). On its face, DHP implements Executive Order 14,043, 86 Fed. Reg. 50,989 (Sept. 14, 2021) (the “EO”). Early in his disciplinary period, on January 21, 2022, the Southern District of Texas enjoined the EO, but DOD did not change its policy. Late in his disciplinary period, the *same week* as Specification #1 and *before* Specification #2 from his removal notice, the CDC, FDA, and the President’s Covid Task Force (SFWTF) posted urgent guidance telling the agencies to stop their screening testing programs -- again, DOD did not change its policy.

On either of those grounds, the agency’s policy is invalid. If facial validity must be considered in the exercise of discretion (Issue 1), the inquiry could end but otherwise there are *Elgin* issues – an administrative judge (“AJ”) would not consider constitutional issues and so no record was made, making Petitioner’s presentation

here on appeal difficult. Petitioner cannot locate relevant precedent to determine whether usual rules apply, i.e. whether he is expected to raise *every* ground for reversal in the Opening Brief. The requirement is unjust here, particularly on the issues where Respondent had the initial burden. However, there are also important constitutional issues deserving of the Court's attention and resolution, justiciable and ready for review in this case absent the *Elgin* issue. Thus, this Motion is driven by uncertainty of waiver but also sense of duty to bring the constitutional issues to the Court's attention.

The Supreme Court considered and chose to allow the situation, knowing a petitioner may arrive in this Court with a constitutional issue but no record. It did so with confidence this Court would cultivate the procedures, if necessary for record-development. *Elgin v. Department of Transportation*, 567 U.S. 1, 9-25 (2012). This case brings that opportunity.

Thus, this Motion introduces documents we request the Court judicially notice and also seeks clarity on the proper approach in light of the *Elgin* situation. A ruling will enable Petitioner to determine whose burden and what the standards are for a given issue, and may help the parties come closer regarding stipulations requested by Petitioner.

It serves justice for this Court to take up the constitutional issues in this case and serves to maintain power balance among the branches. As the public record

documents herein show, behavior by executive agencies during this period was illegal and by design evades review.¹ Kroenung endured hardship, but persevered in collecting the evidence and cataloging the actions, with the knowledge that Congress and the Constitution granted him the right to eventually receive judicial review by this Court.² His case resolved on the legal merits will help protect the separation of powers and the rights of Americans.

“When questions involving the Constitution’s government-structuring provisions are presented in a justiciable case, it is the solemn responsibility of the Judicial Branch ‘to say what the law is.’” *Nat’l Labor Relations Bd. v. Noel Canning*, 573 U.S. 513, 571 (2014) (citations omitted); *see also Mistretta v. United States*, 488 U.S. 361, 382 (1989). “The accretion of dangerous power does not come in a day. It does come, however slowly, from the generative force of unchecked disregard of the restrictions that fence in even the most disinterested assertion of authority.” *Public Citizen v. Dep’t of Justice*, 491 U.S. 440, 468 (1989) (Kennedy, J., concurring in

¹ An excruciating aspect is SFWTF, CDC and FDA disseminated guidance through frequently-updated *websites* and that evidence is highly relevant to legality. The lack of grace in having to bring Wayback website evidence to this Court in the first instance is one reason filing of the Opening Brief was delayed, as counsel attempted to find *any* way to avoid it. Ultimately the risk of waiver was too great, and, with trepidation, it is introduced below. *See also* EX36 at 2 (OMB Memo instructing agencies to follow CDC website guidance and update policies as it changes); EX59 at e.g. 16 (EEOC linking ADA standard to ‘frequently updated’ CDC websites).

² Over a dozen district courts held that CSRA precluded their review of Executive Branch actions, now challenged here, because judicial review is available at this Court. *See* EX15 at 16 (listing cases at n.1).

judgment, joined by Rehnquist, C.J., and O'Connor, J.) (quoting *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 594 (1952)).

It may sound trivial – requiring civilians to take an experimental covid test every week under threat of job loss. But it is the type of behavior DOD will use to its advantage twenty years from now when it is challenged over mandating other, perhaps more invasive, or even less effective, but presently unimaginable medical technologies. Given DOD's history with secret human experimentation (*infra*, § H, Fact 3), abuse of the Investigative New Drug ("IND") statutes (e.g. Ex. 93 at 24-), and as the driver of EUA enactment (e.g. Ex. 29 at 3-5, 7, 13-18), a line must be drawn. Twenty years from now DOD will point to its mandated use of experimental products here to say, historically it has been and was permitted, which can be strong evidence against challenges of illegality in the future. America's system of governance and Constitution were built to rise above and prohibit this type of tyrannical overreach, abhorrent to all.

ARGUMENT

I. BACKGROUND

This appeal stems from an MSPB initial decision that became final on November 12, 2024, affirming Kroenung's removal for refusing to take a covid test before coming to work each week during 2022 until his removal on March 4, 2023. *See* Opening Brief, filed July 28, 2025, as corrected July 29, 2025. Kroenung's brief raises the following issues:

2. [In essence: Were the Executive Orders resulting in the agency's testing policy in excess of the President's legitimate authority?]
3. Whether the agency's implementation of a weekly testing requirement for employees that did not attest to being vaccinated was a lawful basis for the progressive discipline applied and enforced here...and, whether a federal civilian employee's compliance can be conditioned on his use of a non-FDA-approved medical technology, regardless of the level of issuing authority?

The full brief challenges the authority of the President, DOD, the agency, and even other HHS agencies (though the Court does not need to reach all of these)--- this includes involvement by the Office of Personnel Management ("OPM") and Office of Management and Budget ("OMB"). All actors and actions are of governmental entities, and the challenges can be resolved with agency and government documents that are publicly available and verifiable.

Kroenung raised constitutional issues in his written replies and expressly requested a response. SAppx6000; Appx31. One never came. At his hearing,

Kroenung requested briefing on ‘legality of the policy’ and was denied.³ The under-developed record is not Petitioner’s fault. *See also* Opening Brief (“OB”), SOC § K, L; n.7.

On February 16, 2025, counsel emailed Respondent and provided some of the documents we now ask the Court to judicially notice, and the parties have been conferring on the matter ever since.⁴ Many of the exhibits here were argued within a detailed letter to Respondent on April 28, 2025. Briefing helped clarify the role of this Motion, so additional exhibits (beyond the original 29) and the ‘Nine Facts’ sections were added. Respondent maintained ‘no position’ and their statement as of July 22, 2025 is below.

The government takes no position on the motion for judicial notice. To the extent the motion requests inclusion of the subject materials in the appendix or a supplement thereto, or that the Court substantively assess extra-record material, the government opposes that additional relief. *See, e.g., Turman-Kent v. MSPB*, 657 F.3d 1280, 1283 (Fed. Cir. 2011) (declining to assess extra-record evidence under the limited standard of review); *Sanders v. U.S. Postal Serv.*, 801 F.2d 1328, 1329 n.* (Fed. Cir. 1986) (denying motion to supplement appendix with materials not presented to the MSPB).

³ The AJ is authorized to “[r]equire the parties to file memoranda of law and to present oral argument with respect to any question of law.” 5 C.F.R. § 1201.41(9). The AJ not only did not require, but rejected an offer for substantive briefing on the legal issues. However, the rejection was comfortably within scenarios the Supreme Court anticipated in *Elgin* given the AJ’s lack of authority on constitutional and jurisdictional issues.

⁴ The parties agree the documents are not part of the record and so they do not belong in the Joint Appendix. The documents herein are designated for and requested for entry in a Supplemental Appendix.

II. THE COURT SHOULD TAKE JUDICIAL NOTICE OF THE LIMITED SET OF PUBLICLY AVAILABLE DOCUMENTS

The Court “‘is fully capable of providing meaningful review’ of the types of constitutional claims asserted here...The presence of disputed factual questions does not change that calculus.” *Security People, Inc. v. Iancu*, 971 F.3d 1355, 1363 (Fed. Cir. 2020) (quoting *Elgin*, 567 U.S. at 10). *Security People* noted two options for factual development: judicial notice, or sending to MSPB for factual development. *Security People* further noted the Supreme Court’s indication that sending to MSPB was only necessary if the “constitutional claim ‘requires the development of facts beyond those that [we] may judicially notice.’” *Id.* (quoting *Elgin*, 567 U.S. at 19 (citing 5 U.S.C. § 1204(b)(1)–(2))).

A. The Court May Take Judicial Notice of Publicly Available Documents

This Court may take judicial notice of documents that are not “subject to reasonable dispute” because they “can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned.” Fed. R. Evid. 201(b); *In re Chippendales USA, Inc.*, 622 F.3d 1346, 1356-57 (Fed. Cir. 2010) (taking judicial notice of information in PTO records). Such judicial notice may be taken “at any stage of the proceeding,” Fed. R. Evid. 201(d), including on appeal, Fed. R. Evid. 201 (advisory committee’s note to the 1972 proposed rules); accord *Group One, Ltd. v. Hallmark Cards, Inc.*, 407 F.3d 1297, 1306 (Fed. Cir. 2005) (affirming district court’s judicial notice of a PTO document created after the close of evidence); *see*

also Mobility Workx, LLC v. Unified Pats., LLC, 15 F.4th 1146, 1151 (Fed. Cir. 2021) (taking judicial notice of public record documents in order to hear a constitutionality challenge not raised below). While *Mobility Works* concerned review of a jurisdiction issue the lower tribunal was not authorized to decide, the principles apply here where Kroenung is not asking for resolution of disputed factual issues, but raises claims that entail constitutional issues of law.

1. The EO and Related Implementation Guidance Is Relevant

The EO and related implementation guidance, particular to DHP, are relevant. The Board found DHP to be the only authority for the agency's instructions at issue in this case. Up until Pre-hearing submissions, DHP was the only authority offered by NGA for the policy that it enforced against Kroenung, and it was the only authority cited during the first two steps of his progressive punishment.⁵

The Court can reverse the Board's affirmance by invalidating the agency's policy at any period it was enforced against Kroenung, beginning with initial refusal on January 3, 2022, which all agency officials testified was significant in their recommendations or decisions of removal. *See* OB § SOC-F; II.A.1; n.7, n.10.

2. The Public Record Documents Assist Resolution.

⁵ *See, e.g.*, Appx48 (“Following the White House Safer Federal Workforce Task Force mandate, the DoD, and specifically here the NGA, clearly was within its rights to require employees who elected not to [attest to vaccination status] to undergo weekly testing”) (citing DHP).

From a different view, the question is “whether the proceedings here...support the ‘analogy to judicial proceedings[.]’” *Carr v. Saul*, 593 U.S. 83, 84 (2021) (citing *Sims v. Apfel*, 530 U.S. 103, 112 (2000)).

B. Full Documents Excerpted or Referenced in Record Below

DHP is central to this case. Tab 1 of DHP cites ten references. Appx131. We request this Court judicially notice:

(b) [SFWTF], “[C19] Workplace Safety: Agency Model Safety Principles,” 9/13/21 – **Exhibit 01**

(c) [EO14043] – previously Exhibit 02 (*see* OB Addenda instead)

(g) OPM, “Guidance on Enforcing [C19]⁶ Vaccination Requirement for Federal Employees,” 10/1/2021 – **Exhibit 03**

(1) “[FHP]⁷ (Supplement 18) — [DOD] Guidance for Protecting All Personnel in [DOD] Workplaces During the [C19] Pandemic,” 3/17/2021 – **Exhibit 04**

(m) “[FHP] Guidance (Supplement 15) Revision 2 — [DOD] Guidance for [C19] Laboratory Testing Services,” 7/2/ 2021 – **Exhibit 05**

Portions of two documents are in the MSPB Record, but additional context is required from them. *See Johnson v. United States*, 75 F.4th 1354, 1357 n.3 (Fed. Cir. 2023) (taking judicial notice of government documents that were only provided in excerpt form in the appendix, including where multiple versions were at issue).

⁶ Herein, “Coronavirus Disease 2019” and “COVID-19” are abbreviated “C19.”

⁷ Herein, DOD’s “Force Health Protection” is abbreviated “FHP.”

The agency cited one other DOD authority besides DHP, but not until Pre-Hearing Submission. It was issued August 8, 2022, the same day as Specification #1 in Kroenung's removal notice. *See, e.g.*, Appx72-73; Appx244 at ¶ 5; *see also* Appx364 (Transcript 110:16-23) (questioning witnesses about this guidance, not DHP, at the hearing). Excerpts were produced at Appx251-256. To avoid confusion and distinguish it from DHP, we request judicial notice:

“Consolidated [DOD C19, FHP] Guidance - Revision 2” 8/8/2022 – **Exhibit 06** (“CGR2”)

On August 11, 2022, CDC announced that it no longer recommended weekly testing (i.e. “screening testing”) of the unvaccinated. The press release was produced with Kroenung's Pre-hearing submission, Appx293 (Tab 30, Exhibit D at p. 1), however some content from the press release does not appear due to the framing of the webpage. The full text is at **Exhibit 07**.

C. Additional Department of Defense Documents

DOD ended its testing policy on January 30, 2023 in an update to CGR2. We request this Court judicially notice it (“CGR4”) at **Exhibits 08-09**.

Judicial notice is also requested of DOD's earlier testing policies and positions in July 2021 at **Exhibit 31**.

Judicial notice is requested of this August 9, 2021 memo containing then-Secretary Austin's announcement of a vaccine mandate for military members, at **Exhibit 32**.

In December 2020, President-Elect Biden stated he would not make vaccines mandatory, which his press secretary confirmed as late as July 23, 2021. SAppx604; SAppx2368. Following the 7/6 OLC Report (Ex. 29) there were a series of unexplained policy shifts (*see* OB §§ SOC C; IV.A.4), the EO issued and the 9/13/21 Principles were precisely in-line with what the President created the SFWTF to do. SAppx340, § 4 (“provide guidance to agencies...[addressing] testing methodologies and protocols”).

Lastly, if the APA violations are reached in this case, one relevant document is DOD’s guidance on its rule-making administrative procedures at **Exhibit 10**. *See also* 44 U.S.C. § 1507 (“The contents of the Federal Register shall be judicially noticed and without prejudice to any other mode of citation, may be cited by volume and page number.”); *Acetris Health, LLC v. United States*, 949 F.3d 719, 725 (Fed. Cir. 2020).

D. SFWTF (Task Force) Documents

Documents issued by SFWTF are at Exhibit 61. More often, SFWTF issued guidance via its FAQs on its website. *See infra* § G.2.1.4.

E. Excerpts of Briefs filed by the Government

During the course of its appeal of *SDTX-PI*, and eventually in seeking vacatur and remand, the government made highly relevant claims, such as that no one had

been punished pursuant to the EO before its enjoinder. We request the Court judicially notice the pages cited in OB from three of DOJ's briefs at **Exhibits 15-17**.

F. Amicus Brief, Letters and Reports by Congress

Also when *SDTX-PI* went to the Fifth Circuit, at various stages members of Congress filed amicus briefs, relevant to the *Youngstown* issue, at **Exhibit 18**.

Congressional sentiment and agency response may bear on the legality of the EO and/or DHP. Accordingly we request judicial notice of the Letters at **Exhibits 19-22**.

An "After Action Report" at **Exhibit 23** was published after the MSPB decision that presents findings, including some from a bipartisan committee that are relevant here if permitted. The report was created following "more than 100 investigative letters, [] 38 transcribed interviews or depositions, [] 25 hearings or meetings," and review of "more than one million pages of documents from dozens of custodians." Exhibit 23 at 2. It "is the single most thorough review of the pandemic conducted to date." *Id.*

Finally, evidence probative of the history of human medical or scientific experimentation in this Country, particularly DOD's role, is relevant to the liberty right defined in OB. **Exhibits 93 and 97** are documents cited in Harkins and we request judicial notice of these. Exhibits 93 and 97 are the most important, one is a Senate Committee Report and one is testimony at a House Committee Hearing.

Exhibits 94-96 are websites so may belong in a different category, they are also not as probative.

G. Documents Published on Government Websites

Federal employees, including Kroenung, were directed to visit EEOC, CDC, FDA, and/or SFWTF websites to learn more, including about the types of tests available to them and their rights. Unfortunately, these sites were always being updated, and within-agency terminology shifted throughout the relevant time period. The difficulty of dealing with the material is the same reason it is important to undertake.

Each of the documents below was prepared by a government agency and made available on its website, and thus amenable to judicial notice. *See, e.g., Williams v. Long*, 585 F. Supp. 2d 679, 687-88 (D. Md. 2008) (postings on government websites are inherently authentic); *Simpson v. Socialist People's Libyan Arab Jamahiriya*, 362 F. Supp. 2d 168, 178 n.5 (D.D.C. 2005) (taking judicial notice of State Department's annual publication *Patterns of Global Terrorism* as reflecting the official position of U.S. government), *aff'd*, 470 F.3d 356 (D.C. Cir. 2006). As explained in the attached declaration of Erin Knese, each of the documents were

available on government websites, though some are only now available through archive.⁸

None of the websites are meant to present any issues of fact. The changes are at times very revealing and pinpoint certain policy shifts and when they were/were not coordinated among these agencies. The primary goal of the websites is to demonstrate that there were no tests available to Kroenung that had full-market approval. What should be a quick exercise requiring perhaps 1-2 documents subject to judicial notice, becomes an ordeal as one will see if they visit these various websites or try to determine the authorization status of any one Covid test.

G.1 Single Use or Stand-Alone Websites or Documents

The OMB Memo at Ex. 36 was issued June 10, 2021 and rescinds OMB M-20-23 (not an exhibit herein though relevant, but line must drawn at some point). Page 2 of Ex. 36 shows one reason that so many websites are also unfortunately the subject of this Motion for Judicial Notice:

Agencies' COVID-19 Workplace Safety Plans remain in effect and should be updated as needed **to align with current guidance**...Agencies should continue to update [] plans and associated policies and procedures **to align with current guidance from the Task Force and CDC**, such as the recently updated CDC "Interim Recommendations for Fully Vaccinated Individuals" [a website link to the CDC website at Ex. 54 for captures on dates following website updates], as well as other relevant guidance from Federal workplace safety agencies.

⁸ See *Valve Corp. v. Ironburg Inventions Ltd.*, 8 F.4th 1364, 1374-75 (Fed. Cir. 2021) (permitting judicial notice of webpage content available through the Wayback Machine).

(emphasis added); *see also* Ex. 59 at 82 (EEOC site 7/12/22 explaining ADA standard linked to CDC guidance, and employers must “utilize the most current...information” which can and does change rapidly).

Before presenting the rapidly changing website guidance, the websites below were visited to collect a document or to demonstrate one fact *at one time* that is relevant to the issue of legality. We request the Court judicially notice:

CDC Bulletin at **Exhibit 11**.

FDA Guidance for Industry and Other Stakeholders at **Exhibit 12**.

FDA website, “At-Home OTC [C19] Diagnostic Tests” on 8/5/ 2022 at **Exhibit 13**.

FDA website listing covid test “Granted Traditional Marketing Authorization by the FDA” at **Exhibit 14**.

FDA Statement and a Town Hall in March 2021 at **Exhibit 27** and **Exhibit 72** pp. 6-7.

❖ **G.2.1 Path 1 – SFWTF-Testing to Screening on Jan. 24, 2021 – EXHIBIT 50**

Exhibit 50 shows what a person encountered. The declaration is confined to factual presentation. One argumentative point to make is the Final Comment, and that is that ‘Path’ goes on as described this for dozens of links and rarely is one returned to a site that’s already been visited. None of the sites (at this point in time) adequately meet S/HHS’s statutory requirement to inform potential users regarding EUA status, though the sites at earlier times (before late-July 2021) and later (after 2023) show HHS regained some sense of the duty.

G.2.2 Single Website at Different Points in Time

These exhibits capture a single website but on different dates. They are used to support the existence and date of certain policies and shifts. They are also relevant to show the difficulty determining what the different test types were and approval status.

- **G.2.2(a) CDC Sites**

Exhibits 51-55 each contain captures of CDC Websites, with the most important being the CDC Website for the “Self-Test” (Ex. 52). In addition to the CDC Websites captured by these Exhibits, there were dozens of additional CDC websites where relevant ‘guidance and information’ was being released, but that are not captured by the MJN Exhibits, including but not limited to:

www.cdc.gov/coronavirus/2019-ncov/communication/guidance.html

www.cdc.gov/coronavirus/2019-ncov/community/guidance-business-response.html

www.cdc.gov/coronavirus/2019-ncov/community/organizations/testing-non-healthcare-workplaces.html

www.cdc.gov/coronavirus/2019-ncov/community/workplaces-businesses/workplace-testing-consent-elements-disclosures.html

www.cdc.gov/coronavirus/2019-ncov/hcp/testing-overview.html

www.cdc.gov/coronavirus/2019-ncov/if-you-are-sick/index.html

www.cdc.gov/coronavirus/2019-ncov/lab/resources/antigen-tests-guidelines.html

www.cdc.gov/coronavirus/2019-ncov/prevent-getting-sick/prevention.html

www.cdc.gov/coronavirus/2019-ncov/symptoms-testing/testing.html

www.cdc.gov/coronavirus/2019-ncov/testing/diagnostic-testing.html

www.cdc.gov/coronavirus/2019-ncov/testing/self-testing.html

www.cdc.gov/coronavirus/2019-ncov/testing/testing.html

www.cdc.gov/coronavirus/2019-ncov/vaccines/booster-shot.html

www.cdc.gov/vaccines/covid-19/clinical-considerations/covid-19-vaccines-us.html

www.cdc.gov/coronavirus/2019-ncov/vaccines/effectiveness/work.html

www.cdc.gov/coronavirus/2019-ncov/science/science-briefs/fully-vaccinated-people.html

www.cdc.gov/coronavirus/2019-ncov/community/workplaces-businesses/workplace-testing-consent-elements-disclosures.html

- **G.2.2(b) FDA In Vitro Diagnostics EUAs - Antigen – Exhibit 56**

Exhibits 56 and 57 are snapshots of two FDA websites users were frequently directed to by CDC and EEOC. There were dozens of additional FDA websites where relevant ‘guidance and information’ was being released, including but not limited to:

<https://www.fda.gov/consumers/consumer-updates/covid-19-test-basics>

www.fda.gov/medical-devices/coronavirus-COVID-19-and-medical-devices/home-COVID-19-diagnostic-tests-frequently-asked-questions

www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/faqs-testing-sars-cov-2

www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/home-otc-covid-19-diagnostic-tests

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www.fda.gov/medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices/vitro-diagnostics-euas#individual-antigen

www.fda.gov/medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices/in-vitro-diagnostics-euas-antigen-diagnostic-tests-sars-cov-2

www.fda.gov/medical-devices/emergency-use-authorizations-medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices

www.fda.gov/medical-devices/coronavirus-COVID-19-and-medical-devices/home-COVID-19-diagnostic-tests-frequently-asked-questions

www.fda.gov/medical-devices/safety-communications/home-covid-19-antigen-tests-take-steps-reduce-your-risk-false-negative-results-fda-safety

- **G.2.2(c) EEOC Pandemic FAQ – Exhibit 59**

EEOC maintained a FAQ that updated regularly, though EEOC kept their updates at the same website unlike CDC and FDA. Captures from several dates are collected in Exhibit 59.

- **G.2.2(d) SFWTF FAQ Testing – Exhibit 60**

The FAQ pages for Testing and (separately) Vaccination on SFWTF's website were two of many FAQs at the website. The 'Testing' FAQ appeared for the first time on or around August 1, 2021. The guidance and the changes thereto are relevant to the issues of legality and to Presidential authority overreach.

A sample on different dates is located in Exhibit 60. The answer for each 'FA-Question' was located in a box and only one box at a time could be expanded and viewed, burdening the captures. For the relatively minor amount of SFWTF guidance that issued as actual documents (as opposed to website updates), *see supra*

§ D. Note the SFWTF “Document” guidance for federal employees was not generally located or linked to from the FAQ pages.

H. The Nine Facts or Factual Categories

There are nine facts that would enable the Court to answer Petitioner’s legal questions. We do not expect the Court to reach every issue raised, unless it does not find in Petitioner’s favor on any of them. The most important fact is the first, and it is the only one necessary to resolve the primary constitutionality issue in Petitioner’s favor (*e.g.* § IV.C).⁹ They are:

1. **The self-test mandated by DOD was not FDA-approved in 2022**, and even if it was it should still be considered experimental.
2. The agency’s testing policy was issued pursuant to Presidential authority and policy.

⁹ Determining legality of the agency’s policy, if illegal, is one avenue on which the Court can then reverse affirmance of Kroenung’s removal on any of II.(A-C) grounds, including *e.g.* II.C because illegality (or uncertain legality, if the Court finds the policy legal) is a mitigating factor that the DO **must** consider when deciding penalty. The Court may resolve the issue on grounds EO 14043, the agency’s test policy’s primary reference, was enjoined and therefore so was the policy. Given recent pullback on when nationwide injunctions are proper against Presidential orders, resolution of the liberty right provides better assurance of protection of that right than *e.g.* a *Watson* rule based on enjoined executive authority.

3. (Category) Historic instances of medical and scientific human experimentation, including the existence of, details about, and American attitudes towards them.
4. (Fact Category) FDA, CDC and DOD knew the self-test did not work in asymptomatic individuals, but mandated it anyway.
5. (Category of 3 facts) DOD, CDC, and FDA knew by mid-2020 that self-tests reading ‘negative’ were not reliable in asymptomatic individuals.
6. The FDA stopped requiring manufacturers submit, and then actively asked them not to submit, data for self-tests in asymptomatic people, ongoing in March 2021.
7. (Fact Category) Even if a self-test for screening was approved, it is experimental because FDA lowered the bar so significantly for admission to the market. E.g., it permitted any self-test onto the market in 2020, and gave EUA to any self-test manufacturer that asked for it.
8. (Category of 6 facts) Executive agency guidance uniformly stated that Covid testing requires informed consent, and that a required test must meet the ADA “business necessity” standard, through at least June 2021; sometime in July 2021, beginning with the SFWTF’s Agency Model Principles Revision on July 29, 2021, the agencies no longer thought informed consent was necessary.

9. (Category) The ADA’s “business necessity” standard that employers were required to meet to mandate Covid tests is a fact-specific inquiry and Respondent more fairly must first prove a prima facie adherence to it. [dod doc apr 14; eg high risk]

In any scenario, but especially after finding that DHP was being followed, the AJ should have engaged with the ADA standard applicable to employer-mandated medical testing, which Kroenung raised at every opportunity. Under ADA, NGA must show that the test it is requiring is “accurate and reliable” and “job-related and consistent with business necessity.”¹⁰ Like with nexus, NGA did not set forth factual support as to how it met this standard once challenged, and, once again, the Board’s refusal to address the issue results in an improper and extraordinary burden shift to Petitioner unless Court intervention helps course-correct.

As presented in the brief, if the agency’s policy was not enjoined with the EO, or if the EO is deemed lawful, the ADA is a separate legal standard that must be applied. EEOC indicated it would be tied to guidance, recommendations, and “information” issued by HHS. *See* OB § IV.B. For example, during the pandemic

¹⁰ EEOC changed its standards under ADA during the course of the pandemic. *See* Opening Brief § IV.B. Generally speaking, the standard would be met if NGA showed the test was accurate and reliable, and that it was job-related, and that it was consistent with “business necessity.” EEOC consistently stated the latter part of the test would be met if the agency-employer aligned with CDC or FDA guidance.

EEOC’s previous standard requiring employer-mandated medical tests to “be” accurate and reliable dropped to “considered to be” and then “considered by CDC and/or FDA to be” accurate and reliable. EEOC simultaneously broadened its “business necessity” requirement by aligning it with not just CDC and FDA guidance, but also with “recommendations” or “information” from those agencies.

From an evidentiary standpoint, this couples poorly with behavior by the HHS Agencies during the pandemic, when it became standard practice for them to issue guidance, including impactful changes and “clarifications” to long-held standards, in a cavalier manner through a maze of websites and linked FAQs. *See supra* § G. The unfortunate result is an explosion of evidence needed to properly present Kroenung’s challenges to the policy during the period of disciplinary action here *if* it is deemed Petitioner’s burden initially and in the OB. In that instance, Petitioner respectfully requests an opportunity to supplement the brief.

K. Proving the Nine Facts, Initial Showings Pending MFL and/or MJN Ruling

Fact 1: Ex. 13 shows no non-EUA self-test on the market.

Fact 2: See e.g. chart, *supra* § C.

Fact 3: The major principle of all research ethics involving human subjects, as described by the...’Common Rule’ of the U.S. Government, states that the voluntary, competent, informed, and understanding consent of the subject is absolutely

essential, whether during war or peace.” Ex93 (citation omitted). “These standards are more than 50 years old. For example, [international codes in the wake of Nazi war crimes were] *not the outcome of an attempt to frame a new code of ethics*, but rather a description of criteria said [by U.S. physicians Leo Alexander and Andrew Ivy, who served as expert medical witnesses in tribunals where Justice Robert Jackson gave the opening remarks¹¹] to be widely accepted by the medical profession at the time.” *Id.* (citation omitted) (emphasis added).

DOD has a negative history here. Its behavior during the pandemic echoed the past. *Compare, e.g.,* Ex.97 at 4 (SAppx8366) (“special efforts to make information available on test participants are not as far along...We were told earlier this month that the VA continues to have difficulty processing claims because it cannot obtain necessary information from DOD.”) *with* Ex.21 at 1-2 (Letter to S/DOD in 2022, “The opaqueness of the Department continues to frustrate Members of Congress attempting to perform oversight of the Executive Branch. Our repeated inquiries remain unanswered.”). *See also* Ex.97 at 5-6 (describing radiological, chemical, and biological research projects that illustrate the scope and magnitude of governmental experimentation involving humans, including the Atomic Energy Commission funding research that exposed mentally disabled children to radiation).

¹¹ *See* "The Grave Responsibility of Justice" by Justice Robert H. Jackson, available at <https://www.nationalww2museum.org/war/articles/robert-jackson-opening-statement-nuremberg> (last accessed July 14, 2025).

Facts 4-9: Reserve for future proceedings, if needed, and remind its Respondent's burden initially

III. CORRECTION IN THE JOINT APPENDIX

Kroenung submitted written replies to his Notice of Proposed 10-day Suspension and to his Notice of Proposed Removal, dated June 6 and November 4, 2022, respectively, attached as **Exhibit 90**. In the record produced by MSPB, the reply from June 6, 2022 is produced as the written reply in both instances. The parties stipulate the reply at Exhibit 90 is what was sent to the agency. Absent recertification of the record, which has potential to detract from the legal issues, we request the Court take judicial notice of Kroenung's written reply (Exhibit 90 at 5, SAppx6000) as his actual reply to the Notice of Proposed Removal.

IV. CONCLUSION

For the foregoing reasons, Kroenung asks that his motion be granted and the Court take judicial notice of the documents identified herein and in the attached declaration. Petitioner proposes to include the attached documents in a supplemental appendix (to the extent relied on by the parties in their briefs), and as such has designated them pending the outcome of this motion.

Respectfully submitted,

Date: August 3, 2025

/s/ Erin D. Knese

Erin D. Knese, Esq.

GORDON REES SCULLY MANSUKHANI

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Counsel for Petitioner, Mr. Chris Kroenung

ADDENDUM TABLE OF CONTENTS

1. Declaration of Erin Knese

Attachments:

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Exhibit 90

Exhibits 93-97

Joint Appendix Table of Contents*

Designated Joint Appendix*

*These items are included in case the Court needs to see the Joint Appendix prior to closing of briefing.

FORM 9. Certificate of Interest

Form 9 (p. 1)
March 2023**UNITED STATES COURT OF APPEALS
FOR THE FEDERAL CIRCUIT****CERTIFICATE OF INTEREST****Case Number** 2025-1363**Short Case Caption** Kroenung v. Defense**Filing Party/Entity** Chris J. Kroenung**Instructions:**

1. Complete each section of the form and select none or N/A if appropriate.
2. Please enter only one item per box; attach additional pages as needed, and check the box to indicate such pages are attached.
3. In answering Sections 2 and 3, be specific as to which represented entities the answers apply; lack of specificity may result in non-compliance.
4. Please do not duplicate entries within Section 5.
5. Counsel must file an amended Certificate of Interest within seven days after any information on this form changes. Fed. Cir. R. 47.4(c).

I certify the following information and any attached sheets are accurate and complete to the best of my knowledge.

Date: 01/24/2025Signature: /s/ Erin D. KneseName: Erin D. Knese, Esq.

FORM 9. Certificate of Interest

Form 9 (p. 2)
March 2023

1. Represented Entities. Fed. Cir. R. 47.4(a)(1).	2. Real Party in Interest. Fed. Cir. R. 47.4(a)(2).	3. Parent Corporations and Stockholders. Fed. Cir. R. 47.4(a)(3).
Provide the full names of all entities represented by undersigned counsel in this case.	Provide the full names of all real parties in interest for the entities. Do not list the real parties if they are the same as the entities. ☒ None/Not Applicable	Provide the full names of all parent corporations for the entities and all publicly held companies that own 10% or more stock in the entities. ☒ None/Not Applicable
Christopher J. Kroenung		



Additional pages attached

FORM 9. Certificate of Interest

Form 9 (p. 3)
March 2023

4. Legal Representatives. List all law firms, partners, and associates that (a) appeared for the entities in the originating court or agency or (b) are expected to appear in this court for the entities. Do not include those who have already entered an appearance in this court. Fed. Cir. R. 47.4(a)(4).

☐ None/Not Applicable☐ Additional pages attached

Edward Scott Lloyd		
Lloyd Law Group, PLLC		

5. Related Cases. Other than the originating case(s) for this case, are there related or prior cases that meet the criteria under Fed. Cir. R. 47.5(a)?

☐ Yes (file separate notice; see below) ☒ No ☐ N/A (amicus/movant)

If yes, concurrently file a separate Notice of Related Case Information that complies with Fed. Cir. R. 47.5(b). **Please do not duplicate information.** This separate Notice must only be filed with the first Certificate of Interest or, subsequently, if information changes during the pendency of the appeal. Fed. Cir. R. 47.5(b).

6. Organizational Victims and Bankruptcy Cases. Provide any information required under Fed. R. App. P. 26.1(b) (organizational victims in criminal cases) and 26.1(c) (bankruptcy case debtors and trustees). Fed. Cir. R. 47.4(a)(6).

☒ None/Not Applicable☐ Additional pages attached

CERTIFICATE OF COMPLIANCE

Pursuant to Fed. R. App. P. 27(d)(2)(A) and 32(g)(1) and Fed. Cir. R. 27(a), the undersigned certifies the following:

1. The word processing software used to prepare this motion indicates there are a total of 5,200 words in the motion, including footnotes, and excluding documents authorized by Fed. R. App. P. 27(a)(2)(B) and items excluded by Fed. R. App. P. 27(d)(2) and 32(f).

2. The motion complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and type style requirements of Fed. R. App. P. 32(a)(6). It was prepared in a proportionally-spaced typeface using Microsoft® Office Word in fourteen-point Times New Roman font.

Date: August 4, 2025

/s/ Erin D. Knese
Erin D. Knese, Esq.

CERTIFICATE OF SERVICE

I hereby certify that on this 4th day of August, 2025, I electronically filed the foregoing PETITIONER CHRIS KROENUNG'S MOTION FOR JUDICIAL NOTICE, with supporting affidavit, using the Court's CM/ECF filing system, which in turn served copies of the document on all registered counsel.

/s/ Erin D. Knese

Erin D. Knese, Esq.

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St. Louis, MO 63102

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eknese@grsm.com

Counsel for Petitioner, Mr. Chris Kroenung

**IN THE UNITED STATES COURT OF APPEALS
FOR THE FEDERAL CIRCUIT**

CHRIS J. KROENUNG,	)	
	)	
Petitioner,	)	
	)	
v.	)	No. 2025-1363
	)	
DEPARTMENT OF DEFENSE,	)	
	)	
Respondent.	)	
	)	

DECLARATION OF ERIN D. KNESE

Erin D. Knese, an attorney duly admitted to practice before this Court, declares the following:

INTRODUCTION

1. I am an attorney with the law firm Gordon Rees Scully Mansukhani, LLP, in the St. Louis, Missouri office, representing Petitioner Chris Kroenung (“Kroenung”) in the above-captioned matter. As such, I am fully familiar with the facts and circumstances surrounding this matter.

2. I submit this Declaration and the attached exhibits in support of Kroenung’s Motion for Judicial Notice pursuant to the applicable rules of the Federal Rules of Appellate Procedure and this Court’s Rules of Procedure.

3. I further submit the Declaration in accord with suggestions by the Supreme Court in *Elgin v. Department of Transportation*, 567 U.S. 1, 19 (2012) as

a method to present material that can assist this Court's resolution of the constitutional issues present in the case, where no record was built at the MSPB proceeding.

4. "DHP" is shorthand for the DOD Force Health Protection Guidance document found by the Board to control in this case. *See* Opening Brief § SOC (D), at p. 9 (defining DHP). DHP contains a list of ten references it was issued pursuant to at the end of DHP's Tab 1. *See* Appx131.

5. Each exhibit is proposed to become part of the *Designated Supplemental Appendix*, resulting in cited-pages of the exhibits becoming part of the Supplemental Appendix once briefing is closed. The first page of each exhibit's pending designation is provided at the end of each entry below.

THE EXHIBITS (Count Restarts in this section to match the Exhibit Number)

1. Attached as Exhibit 1 is DHP Reference (b): "Safer Federal Workforce Task Force, "COVID-19 Workplace Safety: Agency Model Safety Principles," September 13, 2021. SAppx1.

2. Attached as Exhibit 2 is DHP Reference (c): Executive Order 14043, "Requiring Coronavirus Disease 2019 Vaccination for Federal Employees" September 9, 2021. 86 Fed. Reg. 50,989, 50,989 (Sept. 14, 2021). SAppx10.

3. Attached as Exhibit 3 is DHP Reference (g): United States Office of Personnel Management Memorandum, “Guidance on Enforcing Coronavirus Disease 2019 Vaccination Requirement for Federal Employees — Executive Order 14043,” October 1, 2021. SAppx13.

4. Attached as Exhibit 4 is Acting Under Secretary of Defense for Personnel and Readiness Memorandum, “Force Health Protection Guidance (Supplement 18) — Department of Defense Guidance for Protecting All Personnel in Department of Defense Workplaces During the Coronavirus Disease 2019 Pandemic,” March 17, 2021. SAppx22.

5. Attached as Exhibit 5 is Acting Under Secretary of Defense for Personnel and Readiness Memorandum, “Force Health Protection Guidance (Supplement 15) Revision 2 — Department of Defense Guidance for Coronavirus Disease 2019 Laboratory Testing Services,” July 2, 2021. SAppx36.

6. Attached as Exhibit 6 is “Consolidated Department of Defense Coronavirus Disease 2019, Force Health Protection Guidance - Revision 2” issued August 8, 2022. SAppx45.

7. Attached as Exhibit 7 is a CDC-website capture of “CDC streamlines COVID-19 guidance to help the public better protect themselves and understand their risk” released August 11, 2022. (available at

<https://web.archive.org/web/20220811200901/https://cdc.gov/media/releases/2022/p0811-covid-guidance.html>). SAppx103.

8. Attached as Exhibit 8 is DOD's "Consolidated Department of Defense Coronavirus Disease 2019, Force Health Protection Guidance — Revision 4" issued January 30, 2023. SAppx106.

9. Attached as Exhibit 9 is an Memorandum from the Under Secretary of Defense released with and to accompany Exhibit 8. SAppx168.

10. Attached as Exhibit 10 is Department of Defense, Office of the Secretary, DOD Guidance Documents, 85 Fed. Reg. 32,296 (May 29, 2020). SAppx190.

11. Attached as Exhibit 11 is CDC Bulletin, "Workplace SARS-CoV-2 Testing: Consent Elements and Disclosures" issued January 21, 2021 (available at <https://web.archive.org/web/20210121172816/https://www.cdc.gov/coronavirus/2019-ncov/community/workplaces-businesses/workplace-testing-consent-elements-disclosures.html>). SAppx196.

12. Attached as Exhibit 12 is FDA Guidance for Industry and Other Stakeholders, "Emergency Use Authorization of Medical Products and Related Authorities" issued in January 2017 and noticed in the Federal Register at 82 Fed. Reg. 4362 (January 13, 2017) (available at <https://www.fda.gov/media/97321/download>). SAppx201.

13. Attached as Exhibit 13 is FDA website, “At-Home OTC COVID-19 Diagnostic Tests” as it appeared on August 5, 2022 (available at <https://web.archive.org/web/20220805020652/https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/home-otc-covid-19-diagnostic-tests>). SAppx251.

14. Attached as Exhibit 14 is FDA-website, “COVID-19 Tests Granted Traditional Marketing Authorization by the FDA” updated February 24, 2025 (last accessed March 5, 2025) (available at <https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-tests-granted-traditional-marketing-authorization-fda>). SAppx261.

15. Attached as Exhibit 15 is Brief for Appellant (Government) at the Fifth Circuit, *Feds for Med. Freedom v. Biden*, No. 22-40043, filed on February 14, 2022. SAppx269.

16. Attached as Exhibit 16 is the Government’s Petition for a writ of certiorari, No. 23-60, filed on July 21, 2023 (available at <https://www.supremecourt.gov/docket/docketfiles/html/public/23-60.html>). SAppx342.

17. Attached as Exhibit 17 is the Government’s Reply Brief, No. 23-60, filed on September 26, 2023 (available at

<https://www.supremecourt.gov/docket/docketfiles/html/public/23-60.html>).

SAppx546.

18. Attached as Exhibit 18 is Amicus Curiae Brief filed by 57 Members of Congress, in the case *Feds for Med. Freedom v. Biden* at the Fifth Circuit, No. 22-40043, filed on February 16, 2022, offered in support of Petitioner's *Youngstown* argument if/when full briefing on the issue is permitted. SAppx562.

19. Attached as Exhibit 19 is Letter from Hon. James Comer, Ranking Member, H. Comm. on Oversight & Reform, & Hon. Jody Hice, Ranking Member, Subcomm. on Government Operations, to Hon. Kiran Ahuja, Director, Office of Personnel Management, Hon. Robin Carnahan, Administrator, General Services Administration, & Hon. Shalanda Young, Acting Director, Office of Management and Budget (October 27, 2021). SAppx585.

20. Attached as Exhibit 20 is Letter from 22 Members of Congress, to Dr. Rochelle Walensky, Director, Centers for Disease Control and Prevention (February 25, 2022). SAppx590.

21. Attached as Exhibit 21 is Letter from 57 Members of Congress, to Hon. Lloyd J. Austin III, Secretary, Department of Defense (September 15, 2022). SAppx594.

22. Attached as Exhibit 22 is Letter from Hon. Brad Wenstrup, Chairman, Select Subcomm. on the Coronavirus Pandemic, H. Comm. On Oversight &

Accountability, to Hon. Kiran Ahuja, Director, Office of Personnel Management (June 29, 2023). SAppx603.

23. Attached as Exhibit 23 is Staff of H. Comm. On Oversight, 118th Cong., Rep. on After Action Review of the COVID-19 Pandemic: The Lessons Learned and a Path Forward 218 (2024) (available at <https://oversight.house.gov/release/final-report-covid-select-concludes-2-year-investigation-issues-500-page-final-report-on-lessons-learned-and-the-path-forward/>). SAppx607.

24. Attached as Exhibit 24 is CDC Newsroom “CDC releases consolidated COVID-19 testing recommendations” (June 13, 2021) (available at https://archive.cdc.gov/www_cdc_gov/media/releases/2020/s0613-covid19-testing-recommendations.html). SAppx705.

25. Attached as Exhibit 25 is CDC Website “Overview of Testing for SARS-CoV-2” (June 13, 2021) (available at <https://web.archive.org/web/20200614095819/https://www.cdc.gov/coronavirus/2019-ncov/hcp/testing-overview.html>). SAppx707.

26. [moved]

27. Attached as Exhibit 27 is FDA Statement, “Coronavirus (COVID-19) Update: FDA takes steps to streamline path for COVID-19 screening tools,

provides information to help groups establishing testing programs” issued March 16, 2021 (available at <https://web.archive.org/web/20210318015340/https://www.fda.gov/news-events/press-announcements/coronavirus-covid-19-update-fda-takes-steps-streamline-path-covid-19-screening-tools-provides>). SAppx717. *Note duplicate at SAppx5494.*

28. Attached as Exhibit 28 is a set of documents providing one means to show there were no fully approved Self-Tests available during 2022:

EX #	Date	Item	available at:	p.1 SAppx
28A		TOC for Ex28 FDA approvals/auths		721
28B	2023-0614	Lucira EUA approval	https://www.fda.gov/media/143810/download	722
28C	2025-0402	Lucira EUA revocation	https://www.fda.gov/media/186157/download	732
28D	2023-0216	Ellume FDA EUA letter	https://www.fda.gov/media/144457/download	733
28E	2020-1215	FDA press release for Ellume covid test	https://www.fda.gov/news-events/press-announcements/coronavirus-covid-19-update-fda-authorizes-antigen-test-first-over-counter-fully-home-diagnostic	742
28F	2023-1121	FDA BinaxNow EUA update letter	https://www.fda.gov/media/147251/download	745

28G	2022-1101	FDA revisions to EUAs for antigen tests	https://www.fda.gov/media/162799/download	755
28H	2023-0606	FDA letter for Cue Covid molecular test	https://www.accessdata.fda.gov/cdrh_docs/pdf22/DEN220028.pdf	773
28I	2023-0606	FDA press release for Cue test	https://www.fda.gov/news-events/press-announcements/fda-permits-marketing-first-covid-19-home-test-using-traditional-premarket-review-process	781
28J		FDA substantial equivalence letter for FlowFlex test	https://www.accessdata.fda.gov/cdrh_docs/reviews/K230828.pdf	783
28K	2023-1109	FDA press release for FlowFlex	https://www.fda.gov/news-events/press-announcements/fda-clears-first-covid-19-home-antigen-test	804

29. Attached as Exhibit 29 is “Whether Section 564 of the Food, Drug, and Cosmetic Act Prohibits Entities from Requiring the Use of a Vaccine Subject to an Emergency Use Authorization,” 45 Op. O.L.C. ___, slip op. at 2 (July 6, 2021) (the “7/6 OLC Report”). SAppx1174.

30. Attached as Exhibit 30 is Authorization of Emergency Use of Anthrax Vaccine Adsorbed for Prevention of Inhalation Anthrax by Individuals at Heightened Risk of Exposure Due to Attack With Anthrax; Availability, 70 Fed. Reg. 5452 (Feb. 2, 2005). SAppx7743.

31. Attached as Exhibit 31 is “Force Health Protection Guidance (Supplement 22) – Department of Defense Guidance for Coronavirus Disease 2019 Surveillance and Screening Testing” issued July 21, 2021. SAppx1192.

32. Attached as Exhibit 32 is former Defense Secretary Lloyd Austin’s “Message to the Force” Memorandum for All DOD Employees, issued August 9, 2021. SAppx1198.

33. Attached as Exhibit 33 is Memorandum “Force Health Protection Guidance (Supplement 11) – Department of Defense Guidance for Coronavirus Disease 2019 Surveillance and Screening with Testing” issued June 11, 2020. SAppx1199.

34. Attached as Exhibit 34 is an Order issued by the Missouri Governor that will support the Youngstown/Tenth Amendment issues in the full brief. SAppx4094.

35. Attached as Exhibit 35 “M-21-15” issued the day after the SFWTF was created by EO 13991 and presenting SFWTF’s first version of the “Agency Model Principles” (January 21, 2021). SAppx1205. *Note: duplicate at Ex. 61A at SAppx5001.*

36. Attached as Exhibit 36 is M-21-15 Memorandum for Heads of Executive Departments and Agencies, “Integrating Planning for A Safe Increased

Return of Federal Employees and Contractors to Physical Workplaces with Post-Reentry Personnel Policies and Work Environment” (June 10, 2021). SAppx1216.

37. Attached as Exhibit 37 is M-24-12 Memorandum for Heads of Executive Departments and Agencies, “Updated Guidance Regarding COVID-19 Safe Federal Workplace: Agency Model Safety Principles and COVID-19 Workplace Safety Plans” (April 12, 2024). This exhibit shows the significance of the 8/11/2022 updates to guidance, e.g. at 2 (“in August 2022, the Task Force issued implementation guidance that reflected the most significant updates to CDC guidance on Covid-19”). SAppx1213.

38. Attached as Exhibit 38 is a Congressional Research Service (“CRS”) Insight, “HHS Announcement on FDA Premarket Review of [LDTs]” (12/3/2020). SAppx4091.

39. Attached as Exhibit 39 is an Health and Human Services (“HHS”) Office of the Inspector General (“OIG”) Report, “FDA Repeatedly Adapted EUA authority” (September 2022, covering periods in 2020). SAppx1241. *Note: duplicate at SAppx2368.*

40. Attached as Exhibit 40 is a GAO Report, “FDA Took Steps to Help Make Tests Available; Policy for Future Public Health Emergencies Needed” (May 2022). SAppx1292. *Note duplicate at SAppx5440.*

41. Attached as Exhibit 41 is a CRS Report, “Office of Personnel Management—Applicability of the Congressional Review Act to Guidance on Enforcing Coronavirus Disease 2019 Vaccination Requirement for Federal Employees-Executive Order 14043” (April 6, 2023). SAppx1344.

42. Attached as Exhibit 42 is a redline comparison of the CDC website “Testing Strategies for Non-Healthcare Workplaces” (Ex. 55) on October 7 and October 9, 2021. SAppx1865. *Note the document is also at the end of Ex. 55.*

43. none

44. none

45. none

46. none

47. none

48. none

49. none

50. Attached as **Exhibit 50** is the set of “Sample Path” websites discussed in the MJN § G.2.1. SAppx1349-1414. Titles and URL are provided there. All sites were accessed via the Wayback Machine.

Below, narrates the path through the websites:

Visiting SFWTF FAQ Testing website on January 24, 2022:			
start	Testing Safer Federal	EX. 50, pp. 1-7	https://web.archive.org/web/20220124152530/https://www.saferfederalworkforce.gov/f

	Workforce	2022-01.12	aq/testing/ Last updated: December 28, 2021
Starting from the Task Force's FAQ on Screening, the first item on the page is: Q1. What is screening testing? A: <i>Screening tests</i> [link to site (1)] are intended to identify infection with SARS-CoV-2, the virus that causes COVID-19, in unvaccinated people who are asymptomatic and do not have known, suspected, or reported exposure to SARS-CoV-2. Screening helps to identify unknown cases so that measures can be taken to prevent further transmission. Screening testing is separate and distinct from diagnostic testing, which should be performed on anyone that has signs and symptoms consistent with COVID-19 or following recent known or suspected exposure to SARS-CoV-2. (We don't know when this answer came about because SFWTF FAQs rarely provided dates on the site. Ex. 60 gives an idea of the changes and updates.)			
(1)	Testing Strategies for SARS-CoV-2 CDC	pp. 8-13 2022-01.22	https://web.archive.org/web/20220122082024/https://www.cdc.gov/coronavirus/2019-ncov/lab/resources/sars-cov2-testing-strategies.html#anchor_1615061492602 Last updated: December 28, 2021
(2A)	Overview of Testing for SARS-CoV-2, the virus that causes COVID-19 CDC	pp. 14-26 2022-01.22	https://web.archive.org/web/20220122103908/https://www.cdc.gov/coronavirus/2019-ncov/hcp/testing-overview.html Last updated: January 21, 2022
(2B)	FAQs on Testing for SARS-CoV-2 FDA	pp. 27-29 2022-01.13	https://web.archive.org/web/20220113123605/https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/faqs-testing-sars-cov-2
(3)	Overview of Testing for SARS-CoV-2	pp. 30-33 2021-	https://web.archive.org/web/20210124012914/https://www.cdc.gov/coronavirus/2019-ncov/hcp/testing-overview.html

	(COVID-19) CDC	01.24	Last updated: October 21, 2020
(4)	Test for Current Infection CDC	pp. 34-36 2022- 01.24	https://web.archive.org/web/20220124153838/https://www.cdc.gov/coronavirus/2019-ncov/testing/diagnostic-testing.html Last updated: January 5, 2022
(5)	Self-Testing CDC	pp. 37-45 2022- 01.24	https://web.archive.org/web/20220124153658/https://www.cdc.gov/coronavirus/2019-ncov/testing/self-testing.html Last updated: December 29, 2021

Like with all of the sites so far on this path, Self-Testing has many (20+) links to other websites relevant to the topic of testing.

The top of the page has changed: “Added information on when and why to use a self-test. Self-testing is one of several risk-reduction strategies to reduce the chances of COVID-19 transmission. They may be used regardless of vaccination or symptom status.”

Scrolling down, past many links, is the Overview section:

If you need to be tested for COVID-19, consider using a **self-test** that can be performed at home or anywhere else. Sometimes a self-test is also called a “home test”, an “at-home test”, or an “over-the-counter (OTC) test.” Visit *FDA’s website* [linking to IVD (Antigen), *see infra*, § 2.2(b)] for a list of authorized tests. Some self-tests may have age limitations.

Self-testing offers fast results. Self-tests are one of several options for testing for the virus that causes COVID-19 and may be more convenient than laboratory-based tests and point-of-care tests. Consider keeping self-tests at home or where you may need them.

Self-tests can also be used as one of many risk-reduction measures, along with vaccination, masking, and physical distancing, that *protect you and others* [linking to CDC’s page captured in Ex. 51] by reducing the chance of viral transmission. You can self-test, even if you don’t have symptoms or are fully vaccinated, in order to make decisions that will help prevent spreading COVID-19 to others.

A final paragraph says where to obtain the tests and that some are free, and they are used to detect current infection, with two more links. The description ends there, without coming close to meeting EUA information and notice requirements.

When to Consider Self-Testing

Self-tests may be used if you have COVID-19 symptoms or have been exposed or potentially exposed to an individual with COVID-19. Even if you don't have symptoms and have not been exposed to an individual with COVID-19, using a self-test before gathering indoors with others can give you information about the risk of spreading the virus that causes COVID-19...A positive test result indicates that you likely have a current infection, and you should *isolate* [link] and inform *close contacts* [link].

A negative test result indicates that you may not be infected and may be at low risk of spreading disease to others, though it does not rule out an infection. Repeating the test will increase the confidence that you are not infected. Performing serial tests, meaning two or more tests over several days with at least 24 hours between tests—with one test as close as possible to the event you will attend—improves the reliability of testing and reduces your risk of transmitting disease to others even further. Some self-tests require this type of repeat testing in the manufacturer's instructions.

Continuing to scroll down, to the section called “Serial Testing” it says:

If your self-test is negative, you should follow the manufacturer's instructions for use for serial testing, if applicable, that are included in the test box, or you can find the instructions for your test [links to molecular or antigen] on the FDA website. They may recommend you test again within 2 or 3 days. Contact a healthcare provider if you have any questions about your test results or serial testing.

Again there is nothing to indicate all of these tests are only available under EUA.

Visiting two of the links from this section:

(6A)	Link: “FDA’s website” Site: In Vitro Diagnostics EUAs - Antigen Diagnostic Tests	pp. 46-49 2022-01.24	https://web.archive.org/web/20220124153658/https://www.fda.gov/medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices/in-vitro-diagnostics-euas-antigen-diagnostic-tests-sars-cov-2
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	for SARS-CoV-2		
(6B)	Link: protect you and others Site: How to Protect Yourself & Others	pp. 50-54 2022-01.24	https://web.archive.org/web/20220124153736/https://www.cdc.gov/coronavirus/2019-ncov/prevent-getting-sick/prevention.html Last updated: January 20, 2022
At the Prevention website (6B), there are another 30+ links, including one called “Types of Tests” (site 7):			
(7)	COVID-19 Testing: What You Need to Know CDC	pp. 64-66 2022-01.24	https://web.archive.org/web/20220124163600/https://www.cdc.gov/coronavirus/2019-ncov/symptoms-testing/testing.html Last updated: December 29, 2021
(6C)	Link: antigen Site: In Vitro Diagnostics EUAs - Antigen Diagnostic Tests for SARS-CoV-2	[see 6A]	[link is same as (6A)]
(6D)	In Vitro Diagnostics EUAs - Molecular Diagnostic Tests for SARS-CoV-2 FDA	pp. 55- 64 2022-01.25	https://web.archive.org/web/20220125003500/https://www.fda.gov/medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices/in-vitro-diagnostics-euas-molecular-diagnostic-tests-sars-cov-2
(2B)	Returning manually back to first-visited link for (1) Screening, to visit the second testing link at the bottom of the page, it goes to an FDA website with 20 links, including but not limited to the following: FDA's COVID-19 Frequently Asked Questions Policy for Coronavirus Disease-2019 Tests		

Notifications and Emergency Use Authorizations
At-Home COVID-19 Diagnostic Tests
Test Development and Review
Test Uses
Testing Supplies
COVID-19 Related Test Data and Reporting
Emergency Use Authorizations for Medical Devices
In Vitro Diagnostics (e.g., molecular, antigen, and serology tests) [list linked here is included in previous link]
Coronavirus (COVID-19) and Medical Devices: In Vitro Diagnostic Tests
SARS-CoV-2 Viral Mutations: Impact on COVID-19 Tests
EUA Authorized Serology Test Performance
SARS-CoV-2 Reference Panel Comparative Data
Pooled Sample Testing and Screening Testing for COVID-19
Virtual Town Hall Series - Coronavirus (COVID-19) Test Development and Validation

All with unique sites not yet visited including:

[https://www.fda.gov/\[INSERT\]](https://www.fda.gov/[INSERT]):

[emergency-preparedness-and-response/coronavirus-disease-2019-covid-19/covid-19-frequently-asked-questions](https://www.fda.gov/emergency-preparedness-and-response/coronavirus-disease-2019-covid-19/covid-19-frequently-asked-questions)

[regulatory-information/search-fda-guidance-documents/policy-coronavirus-disease-2019-tests-during-public-health-emergency-revised](https://www.fda.gov/regulatory-information/search-fda-guidance-documents/policy-coronavirus-disease-2019-tests-during-public-health-emergency-revised)

[medical-devices/coronavirus-covid-19-and-medical-devices/notifications-and-emergency-use-authorizations-faqs-testing-sars-cov-2](https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/notifications-and-emergency-use-authorizations-faqs-testing-sars-cov-2)

[medical-devices/coronavirus-covid-19-and-medical-devices/home-covid-19-diagnostic-tests-frequently-asked-questions](https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/home-covid-19-diagnostic-tests-frequently-asked-questions)

[medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-test-development-and-review-faqs-testing-sars-cov-2](https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-test-development-and-review-faqs-testing-sars-cov-2)

[medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-test-uses-faqs-testing-sars-cov-2](https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-test-uses-faqs-testing-sars-cov-2)

[medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-testing-supplies-faqs-testing-sars-cov-2](https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-testing-supplies-faqs-testing-sars-cov-2)

[medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-](https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-)

	related-test-data-and-reporting-faqs-testing-sars-cov-2 medical-devices/emergency-use-authorizations-medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices/in-vitro-diagnostics-euas medical-devices/emergency-situations-medical-devices/coronavirus-covid-19-and-medical-devices#ivd medical-devices/coronavirus-covid-19-and-medical-devices/sars-cov-2-viral-mutations-impact-covid-19-tests medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices/eua-authorized-serology-test-performance medical-devices/coronavirus-covid-19-and-medical-devices/sars-cov-2-reference-panel-comparative-data medical-devices/coronavirus-covid-19-and-medical-devices/pooled-sample-testing-and-screening-testing-covid-19 medical-devices/workshops-conferences-medical-devices/virtual-town-hall-series-coronavirus-covid-19-test-development-and-validation-01262022
Final Comment	

51. Attached as **Exhibit 51** is captures of the CDC Website “How to Protect Yourself and Others” on various dates listed below (available at <https://web.archive.org/web/20201125000607/https://www.cdc.gov/coronavirus/2019-ncov/prevent-getting-sick/prevention.html> and accessed via the Wayback Machine).

EX51A	pp.1-4 Updated Jan. 30, 2021
EX51B	pp.5-7 Last reviewed March 18, 2020
EX51C	pp.8-10 Last reviewed April 13, 2020
EX51D	pp.11-13 Last reviewed April 24, 2020

EX51E	pp.14-17 Updated Sept. 11, 2020
EX51F	pp.18-21 Updated Nov. 4, 2020
EX51G	pp.22-25 Updated Nov. 27, 2020
EX51H	pp.26-29 Updated Dec. 31, 2020
EX51I	pp.30-34 Updated Jan. 30, 2021
EX51J	pp.35-38 Updated Feb. 4, 2021
EX51K	pp.39-43 Updated Feb. 25, 2022
EX51L	pp.44-54 Updated Aug. 11, 2022
EX51M	pp.55-64 Updated Oct. 19, 2022
EX51N	pp.65-78 Updated Jan. 26, 2023
EX51O	pp.79-89 Updated July 6, 2023

52. Attached as **Exhibit 52** is captures of the CDC website “Self-Testing At Home or Anywhere” on various dates listed below (available at www.cdc.gov/coronavirus/2019-ncov/ncov/testing/self-testing.html and accessed via the Wayback Machine).

Page	Updated
pp.1-4	2021-04-15
pp.5-9	2021-04-25
pp.10-14	2021-05-14
pp.15-10	2021-06-11
pp.20-25	2021-07-21
pp.26-31	2021-08-02
pp.32-37	2021-09-28
pp.38-43	2021-10-04
pp.44-49	2021-10-21
pp.50-56	2021-11-04
pp.57-64	2021-12-06
pp.65-71	2021-12-29
pp.72-76	2022-02-16
pp.77-82	2022-03-09
pp.83-89	2022-03-09
pp.90-101	2022-09-06
pp.102-106	2023-04-25
pp.107-113	2023-09-25

A redline comparison of the website on October 4 and October 21, 2021, is given at Exhibit 42 (and a copy is at the end of this Exhibit).

53. Attached as **Exhibit 53** are captures of the CDC Website “Testing Overview” (title before Dec 6, 2021), and "COVID-19 Testing What You Need To Know" (title from Dec. 6, 2022 onward) on various dates listed below (available at <https://web.archive.org/web/20230510040015/https://www.cdc.gov/coronavirus/2019-ncov/symptoms-testing/testing.html> and accessed via the Wayback Machine). Second column is stated “last update” given by the website, third column is date accessed with Wayback.

pp.1	March 13, 2020	2020-03-14
pp.2–4	March 21, 2020	2020-03-26
pp.5–6	April 15, 2020	2020-04-25
pp.7	April 27, 2020	2020-04-30
pp.8	May 1, 2020	2020-05-07
pp.9	June 24, 2020	2020-07-09
pp.10–12	Aug. 24, 2020	2020-09-02
pp.13–15	Oct. 21, 2020	2020-10-27
pp.16–18	Dec. 7, 2020	2020-12-26
pp.19–21	Mar. 17, 2021	2021-07-02
pp.22–27	July 2, 2021 2	021-07-29
pp.28–32	Aug. 2, 2021	2021-08-31
pp.33–38	Oct. 21, 2021	2021-10-24
pp.39–42	Oct. 27, 2021	2021-12-03
pp.43–46	Dec. 6, 2021	2021-12-19
pp.47–50	Dec. 29, 2021	2021-12-30
pp.51–55	Feb. 1, 2022	2022-02-24
pp.56–59	Feb. 25, 2022	2022-04-19
pp.60–66	May 3, 2022	2022-06-28
pp.67–73	Aug. 11, 2022	2022-09-01
pp.74–80	Sept. 28, 2022	2023-02-19

pp.81–87	May 11, 2023	2023-05-30
pp.88–92	Sept. 25, 2023	2024-03-31
pp.93–96	May 2, 2024	2024-06-20
pp.97–100	May 2, 2024	2024-06-20

54. Attached as **Exhibit 54** is is captures of the CDC Website “CDC Business Guidance” an OMB Linked site, on various dates listed below (available at <https://www.cdc.gov/coronavirus/2019-ncov/community/guidance-business-response.html> and accessed via the Wayback Machine). Second column is stated “last update” given by the website, third column is date accessed with Wayback.

pp.1–6	Feb 26, 2020	2020-03-06
pp.7–14	Mar 22, 2020	2020-04-08
pp.15–24	?	2020-05-02
pp.25–32	May 5, 2020	2020-05-08
pp.33–46	May 6, 2020	2020-07-03
pp.47–61	Dec 4, 2020	2020-12-15
pp.62–80	Jan 4, 2021	2021-01-07
pp.81–97	Mar 8, 2021	2021-08-10

55. Attached as **Exhibit 55** is is captures of the CDC Website “SARS-CoV-2 Testing Strategy” on various dates listed below (available at <https://www.cdc.gov/coronavirus/2019-ncov/community/organizations/testing-non-healthcare-workplaces.html> and accessed via the Wayback Machine).

pp.1-6	July 3, 2020
pp.7-13	July 22, 2020
pp.14-19	Oct. 21, 2020
pp.20-29	Mar. 17, 2021
pp.30-40	Oct. 7, 2021
pp.41-51	Oct 5, 2021(sic)

56. Attached as **Exhibit 56** are captures of the FDA Website “FDA: In Vitro Diagnostics EUAs -Antigen Diagnostic Tests” on various dates listed below (available at <https://www.fda.gov/medical-devices/coronavirus-disease-2019-covid-19-emergency-use-authorizations-medical-devices/in-vitro-diagnostics-euas-antigen-diagnostic-tests-sars-cov-2>, accessed via the Wayback Machine).

pp.1–4	2021-06-07
pp.5–8	2021-08-12
pp.9–12	2021-09-15
pp.13–17	2021-10-04
pp.18–22	2021-11-23
pp.23–27	2021-12-20
pp.28–32	2021-12-29
pp.33–37	2022-01-07
pp.38–42	2022-01-10
pp.43–47	2022-01-31
pp.48–52	2022-02-25
pp.53–57	2022-04-13
pp.58–62	2022-05-19
pp.63–68	2022-07-05
pp.69–73	2022-08-15
pp.74–78	2022-08-22
pp.79–83	2022-08-30
pp.84–88	2022-09-06
pp.89–93	2022-09-28

57. Attached as **Exhibit 57** are captures of the FDA Website “In-Vitro Diagnostics EUA” on various dates listed below (available at <https://www.fda.gov/>

medical-devices/coronavirus-disease-2019-covid-19-emergency-use-
 authorizations-medical-devices/in-vitro-diagnostics-euas and accessed via the
 Wayback Machine).

pp.1-19 | 2020-06-17
 pp.20-47 | 2020-08-16
 pp.48-87 | 2021-03-19
 pp.88-128 | 2021-03-25
 pp.129-133 | 2021-04-22
 pp.134-138 | 2021-06-24
 pp.139-144 | 2021-08-03
 pp.145-149 | 2021-09-30
 pp.150-154 | 2021-11-03
 pp.155-159 | 2022-01-15
 pp.160-164 | 2022-03-13
 pp.165-169 | 2022-05-04
 pp.170-175 | 2022-06-13
 pp.176-181 | 2022-11-02
 pp.182-187 | 2023-01-12
 pp.188-193 | 2023-09-11
 pp.194-199 | 2023-01-24
 pp.200-206 | 2023-10-21
 pp.207-214 | 2023-12-08
 pp.215-222 | 2025-04-02

58. Attached as **Exhibit 58** are captures of FDA items and November 1, 2022
 Safter Communication Letter, accessed via the Wayback Machine. SAppx2197.

EX58A pp.1-3 August 11, 2022
 EX58B pp.4-7 November 17, 2022
 EX58C [error, the Nov. 1, 2022 Letter is instead a duplicate of 58B]

59. Attached as **Exhibit 59** are captures of the EEOC Website “What You
 Should Know About COVID-19 and the ADA, the Rehabilitation Act, and Other

EEO Laws.” Sections/Questions captured are the Intro, A.6, A.7, K.4, K5. and K.6 on various dates listed below (available at <https://www.eeoc.gov/wysk/what-you-should-know-about-covid-19-and-ada-rehabilitation-act-and-other-eeo-laws>, accessed via the Wayback Machine). SAppx2207.

EX59A

pp.1-6 Updated April 23, 2020

pp.7-10 Updated May 5, 2020

pp.11-38 Updated Sep. 8, 2020

pp.11-17 Section A

pp. 14-15 Section A.6

pp.15-16 Section A.7

EX59B

pp.39-60 Updated Dec. 16, 2020

pp.41-44 Section A

pp.42-43 Section A.6

pp.43-44 Section A.7

pp.45-50 Section K

EX59C

pp. 51-61 Updated June 28, 2021

pp. 52-54 Section A

pp.53-54 Section A.6

pp.54 Section A.7

pp.55-61 Section K

EX59D

pp.62-78 Updated December 14, 2021

pp.64-78 Section A

pp.66-68 Section A.6

pp.68 Section A.7

pp.69-78 Section K

EX59E

pp.79-98 Updated July 12, 2022

pp.81-86 Section A

pp.84-86 Section A.6

pp.86 Section A.7

pp. 87-98 Section K

60. Attached as **Exhibit 60** are captures of the SFWTF website, which was arranged a set of “Frequently Asked Questions” (“FAQs”) (available at www.saferfederalworkforce.gov/faq/testing/ (Testing), and at www.saferfederalworkforce.gov/faq/vaccinations/ (Vaccinations), all accessed via the Wayback Machine). Unlike for the websites in Exhibits 50-57 and 59 above, the set below does *not* capture every update to the site because there were so many.

EX60A	pp.1	2021-08-01 (Testing)
EX60B	pp.2-7	2021-08-26 (Testing)
EX60C	pp.8-12	2021-10-06 (Testing)
EX60D	pp.13-17	2021-11-17 (Testing)
EX60E	pp.18-24	2022-01-11 (Testing)
EX60F	pp.25-31	2022-08-16 (Testing)
EX60G	pp.32-40	2024-01-27 (Testing)
EX60H	pp.41-42	2021-06-09 (Vaccination)
EX60I	pp.43-44	2021-07-29 (Vaccination)
EX60J	pp.45-47	2021-08-01 (Vaccination)
EX60K	pp.48-55	2021-09-04 (Vaccination)

61. Attached as **Exhibit 61** are actual documents (as opposed to website FAQ updates) released by the President’s SFWTF on the dates listed below:

SFWTF Document-Issued Guidance			
Date	Document	MJN Exhibit	SAppx
1/24/21	Agency Model Principles (initial)	61A (61 p.1)	5001,also at

			1205
4/7/2021	Federal Testing Plan	61B (p.9)	5009
7/29/21	Agency Model Principles (rev1)	61C (p.19)	5019
9/13/21	Agency Model Principles (rev2)	61D (p.26)	5026
4/7/21	Federal Testing Plan	61E (p.34)	5034, also at Appx294-304
1/24/22	FAQ following <i>SDTX-PI</i>	61F (p.38)	5038
2/28/22	Implementation Guidance	61G (p.40)	5040
8/17/22	Implementation Guidance Update	61H (p.44)	5044
9/15/22	Model Agency Safety Principles	61I (p.46)	5046

Please note the Opening Brief contains an error where Exhibit 61D (9/13/2021 Agency Model Principles) were erroneously referred to as being at SAppx372 and SAppx340.

62. Attached as Exhibit 62 is the Fact Sheet announced in Exhibit 63. SAppx715.

63. Attached as Exhibit 63 is an FDA announcement of a Fact Sheet, “Screening for COVID-19: Deciding Which Test to Use When Establishing Testing Programs” (March 17, 2021). SAppx5092. *Note: duplicate at SAppx1236; SAppx712.*

64. held

65. held

66. held

67. held

68. held

69. held

70. held

71. held

72. Attached as Exhibit 72 is Toby Lowe, Remarks at FDA Virtual Town Hall Series (March 17, 2021) (available at <https://web.archive.org/web/20210413071331/https://www.fda.gov/media/146819/download>). SAppx6370. *Note duplicate at SAppx8000.*

73. held

74. held

75. Attached as Exhibit 75 is OSHA guidance published in the Federal Register, 2021. Vol. 86, No. 212, 61555-61627. SAppx8050.

76. held

77. Attached as Exhibit 77 is The White House, *Update on Implementation of COVID-19 Vaccination Requirement for Federal Employees*, at <https://bidenwhitehouse.archives.gov/omb/briefing-room/2021/12/09/update-on-implementation-of-covid-%e2%81%a019-vaccination-requirement-for-federal-employees/> (December 9, 2021). SAppx2360.

78. Attached as Exhibit 78 is The White House, *Press Briefing by Press Secretary Jen Psaki*, July 23, 2021). at <https://www.whitehouse.gov/briefing-room/press-briefings/2021/07/23/press-briefing-by-press-secretary-jen-psaki-july-23-2021/>. SAppx2364.

79. Attached as Exhibit 79 is The White House, *Remarks by President Biden on Fighting the COVID-19 Pandemic* (Sept. 9, 2021), at <https://www.whitehouse.gov/briefing-room/speeches-remarks/2021/09/09/remarks-by-president-biden-on-fighting-the-covid-19-pandemic-3/>. SAppx6368.

80. held

81. held

82. held

83. Attached as Exhibit 83 is DOD Guidance issued 10/29/2021 (reference (a) of DHP, which DHP rescinds). SAppx5501.

84. Attached as Exhibit 84 is DOD Guidance issued 10/18/2021 (this guidance is rescinded by Ex.83). SAppx5525.

85. Attached as Exhibit 85 is DOD Guidance issued 9/7/2021 (this guidance is rescinded by Ex.84). SAppx5551.

86. Attached as Exhibit 86 is is DOD Guidance issued 4/14/2021 (this guidance is rescinded by Ex.84). SAppx5561.

87. held

88. held

89. held

90. Kroenung's written replies, see MJN § III. SAppx5996.

91. held

92. held

93. Attached as Exhibit 93 is Staff of S. Comm. On Veterans' Affairs, 103rd Cong., Rep. "Is Military Research Hazardous to Veterans' Health? Lessons Spanning Half a Century" (Dec. 8, 1994). SAppx8300.

94. Attached as Exhibit 94 is "Operation Whitecoat _ Religion & Ethics NewsWeekly _ PBS" (Oct. 24, 2003) (available at <https://www.pbs.org/wnet/religionandethics/2003/10/24/october-24-2003-operation-whitecoat/15055/>). SAppx8358.

95. Attached as Exhibit 95 is "About The Untreated Syphilis Study at Tuskegee" (available at <https://perma.cc/8YQL-HNEK>). SAppx8359.

96. Attached as Exhibit 96 is US Dept of Veterans Affairs, Edgewood/Aberdeen experiments (available at <https://perma.cc/YPE5-UL2P>). SAppx8362.

97. Attached as Exhibit 97 is Testimony of Frank Conahan to the H. Comm. On National Security and International Affairs, "Human Experimentation An Overview on Cold War Era Programs" (Sept. 28, 1994). SAppx8363.

Executed on August 4, 2025.

/s/ Erin D. Knese

Erin D. Knese, Esq.

Gordon Rees Scully Mansukhani